

****20.08.2024****

****A New Sanction for Violation of GDPR****

The National Supervisory Authority has completed an investigation in July of the current year regarding the operator Ana Hotels SRL and found a violation of the provisions of Article 32 paragraph (1) letters b) and d) in conjunction with Article 32 paragraph (2) of the General Data Protection Regulation (GDPR).

As such, the operator was sanctioned with a fine amounting to 39,763.20 lei, equivalent to 8,000 EURO.

The investigation was initiated following the operator's notification of a personal data security breach under the GDPR.

During the investigation, it was found that the security breach of data processing occurred as a result of a ransomware cyberattack, which led to the unauthorized disclosure of personal data processed and stored through the IT systems of Ana Hotels SRL, affecting a significant number of data subjects, employees of the operator.

Consequently, based on the criteria for individualizing sanctions provided by Article 83 of the GDPR, it was determined to impose a fine for the violation of the provisions of Article 32 paragraph (1) letters b) and d) in conjunction with Article 32 paragraph (2) of the GDPR, as the operator did not implement appropriate technical and organizational measures to ensure a level of security commensurate with the risk of processing, including the ability to ensure the confidentiality of processing systems and services.

At the same time, a corrective measure was ordered for the operator to implement a procedural plan that includes a process for the testing, evaluation, and periodic assessment of all IT systems of the operator that process personal data, in order to guarantee the security of processing, which must also include continuous logging in terms of both access and data traffic on the servers of the IT infrastructure of Ana Hotels SRL for at least 30 calendar days, including the application of a backup process over a similar time frame.

****Legal and Communication Department****

****A.N.S.P.D.C.P.****